

makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in Attachment 1, Nos. 1 through 8, to RFA No. 1 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached to the RFAs (defined as the “Terms and Conditions”), pursuant to RFA No. 2, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

6. 9:00 AM CASE NUMBER: L25-01638
CASE NAME: DISCOVER BANK VS. KIMBERLY KNELL
***HEARING ON MOTION IN RE: MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT**
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Defendant Kimberly A Knell (“Defendant”) filed a Motion for Order Vacating and Setting Aside Default and Default Judgment on November 21, 2025 (the “Motion to Set Aside Default”). The Motion to Set Aside Default was set for hearing on December 23, 2025. No opposition to the motion has been filed.

Background

Plaintiff filed a Complaint on February 10, 2025. A default was entered against Defendant on June 13, 2025 (the “Default”). Thereafter, a default judgment was entered on September 25, 2025 (the “Default Judgment”).

Analysis

Defendant’s motion is based upon Code of Civil Procedure section 473(b). See

Memorandum of Points and Authorities (“MPA”) as part of Motion to Set Aside Default, p. 3.

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

Defendant recounts, at length, an extraordinary set of difficult life circumstances which Defendant describes led to her neglecting to timely file a response to the lawsuit after service. See Declaration in Support, pp. 1-2.

Moreover, it is relevant that a speedy default was taken without evidence of a prior demand for a response. The “quiet speed” of a party in seeking a default can itself be a sufficient ground for setting aside a default under Section 473. See *Robinson v. Varela* (1977) 67 Cal.App.3d 611, 616. The application for entry of a default against Defendant was signed by Plaintiff on June 12th, less than a month after Defendant’s response deadline (the Proof of Service of Summons reflects that personal service was perfected on Defendant on April 18, 2025 and thirty (30) days thereafter would have been Sunday, May 18, 2025, with the deadline rolling over to Monday, May 19, 2025). And there was no evidence submitted of a prior demand for a response or other attempt to contact Defendant before taking the default.

The Court finds, in its discretion, that the default resulted from Defendant’s mistake, inadvertence, surprise, and/or excusable neglect. The Court further finds that it is just and equitable to relieve Defendant from the default and that Plaintiff will not be prejudiced by granting such relief.

In addition, the Court does not conclude that the motion is necessarily barred by the failure to submit a proposed form of responsive pleading when the motion was filed. See Code Civ. Proc. § 473(b) (“Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted...”). A court can deny the motion outright for this reason alone. See *Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 64 (failure to lodge a form of proposed responsive pleading means that the motion is not in “proper form” and, as such, is properly denied.).

However, this requirement can be satisfied by the filing of a proposed answer at any time before the hearing. See *Hu v. Fang* (2002) 104 Cal.App.4th 61, 65. Accordingly, as set forth below, the Court is inclined to grant the motion if Defendant appears and lodges a proposed form of responsive pleading.

Disposition

The Court finds and orders as follows:

1. For the reasons discussed above, the parties are **ORDERED TO APPEAR** to address the proposed form of responsive pleading, such as an Answer. **Defendant is directed to bring a form of proposed responsive pleading, such as an Answer, to the hearing.**
2. Subject to Paragraph 1 above, the Motion to Set Aside Default is GRANTED.
3. Defendant shall file and serve a responsive pleading within ten (10) days.

7. 9:00 AM CASE NUMBER: L25-05488

CASE NAME: CAPITAL ONE, N.A. VS. CHERYL RUIZ

*HEARING ON MOTION IN RE:

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

_ Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the "Motion to Deem Admissions") as against defendant Cheryl L Ruiz ("Defendant"). The Motion to Deem Admissions was set for hearing on December 23, 2025. Opposition papers were filed on December 12, 2025.

Background

Plaintiff indicates that it served Defendant with a set of requests for admissions. See Declaration of Brian Langedyk filed October 6, 2025 as part of the Motion to Deem Admissions ("Supporting Declaration"), ¶2 and **Exhibit 1** thereto (the "RFAs").

Plaintiff's Supporting Declaration indicates that the RFAs were served on August 11, 2025 by mail to Defendant. *Id.* at ¶2 and **Exhibit 1** [attached Proof of Service dated August 11, 2025 (the "Proof of Service")]. The service was asserted to have been done at an address in Oakley, California: